

Court No. - 36

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Vikas Budhwar

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

It is submitted by Shri Nitin Sharma, learned counsel for the petitioner that the petitioner is the owner of the premises in question. The petitioner was granted Retail Outlet Dealership by Hindustan Petroleum Corporation Limited. The Dealership Agreement was terminated on 23rd January, 2007. Thereafter, the respondent No.8 was given the contract for running the Retail Outlet Dealership in the same premises. The petitioner, as the owner of the premises, continued as lessor, vis-a-vis, Hindustan Petroleum Corporation Limited. Theft of electricity was allegedly committed on 8th August, 2008. The petitioner paid electricity bill for the period upto 29th December, 2006. As no payment was made by the petitioner subsequent to the said date, the submission proceeds, the electricity connection in the name of the petitioner in the premises in question would be deemed to have been temporarily disconnected and, thereafter, permanently disconnected by virtue of the provisions contained in Clauses 4.36, 4.37 and 4.38 of the U.P. Electricity Supply Code, 2005.

It is further submitted by Shri Nitin Sharma, learned counsel for the petitioner that in the circumstances, no liability for the alleged theft of electricity, and the consequent assessment on account of the alleged theft, could be fastened on the petitioner.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent Nos. 1 and 2 has been accepted by Shri Rajesh Tripathi.

Notice on behalf of the respondent Nos. 3 and 4 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent Nos. 5, 6 and 7 has been accepted by Shri Vikas Budhwar.

Notice will be issued to the respondent No.8 fixing 11th July, 2011.

Counter Affidavit may be filed by the aforesaid respondents within six weeks. Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 11th July, 2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the matter, the recovery proceedings against the petitioner pursuant to the Recovery Citation dated 11th December, 2010 (Annexure No.9 to the Writ Petition) will remain stayed provided within four weeks from today, the petitioner deposits an amount of Rs. 1,25,000/- with the respondent No.2.

The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present case.

In the case of default on the part of the petitioner in making the deposit, as mentioned above, this interim order will stand automatically vacated.

Order Date :- 26.4.2011

Ak

Court No. - 36

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Vikas Budhwar

Hon'ble Yatindra Singh, J.

Hon'ble Kashi Nath Pandey, J.

Sri Upendra Upadhyay filed his vakalatnama/parcha on behalf of respondent no. 8. List this petition in the week commencing 25.7. 2011, showing his name as counsel for respondent no. 8. In the mean time the petitioner may also file the receipt of the deposit of the amount mentioned in the interim order dated 26.4.2011 and file affidavit that he has filed the same.

Counsel for the Hindustan Petroleum Corporation Limited may obtain instructions or file counter affidavit indicating whether the dealership of the petitioner had been cancelled on 23.1.07 or not. The interim order is extended till the next date of listing.

Order Date :- 11.7.2011

KCS

व्यवहार प्रकीर्ण याचिका सं० — 23988 वर्ष 2011
अशोक कुमार अजमेरा प्रति दक्षिणांचल विद्युत वितरण निगम लि० एण्ड अदर्स

माननीय यतीन्द्र सिंह, न्यायमूर्ति
माननीय काशी नाथ पाण्डेय, न्यायमूर्ति

याची के अधिवक्ता का कथन है कि दि० 22-7-2011 को उन्होंने पूरक शपथपत्र दाखिल करके वह रसीद लगायी है, जिसके द्वारा अन्तरिम आज्ञा के अन्तर्गत कहा गया पैसा जमा कर दिया गया है। यह शपथपत्र पत्रावली पर नहीं है। कार्यालय इसे खोजकर पत्रावली पर रखे।

विपक्षी सं० 5 से 7 की ओर से प्रतिशपथपत्र दाखिल किया जा रहा है, जो स्वीकार किया जाता है। विपक्षी सं० 8 को एक सप्ताह का समय प्रतिशपथपत्र दाखिल करने के लिए दिया जाता है। तत्पश्चात 2 सप्ताह का समय याची को प्रत्युत्तरशपथपत्र दाखिल करने के लिए रहेगा। तत्पश्चात इस याचिका को प्रारम्भिक बहस के लिए सूचीबद्ध किया जाय ।

अगली सूचीबद्ध होने की तिथि तक अन्तरिम आदेश प्रभावी रहेगा।

25-7-2011

के०सी०

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble R.K. Agrawal, J.

Hon'ble Sunil Hali, J.

Passed over on the request of Sri Rajesh Tripathi.

The interim order is expiring today, which is extended till the next date of listing.

Order Date :- 9.8.2011

SU.

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble R.K. Agrawal, J.

Hon'ble Vinod Prasad, J.

As prayed, counter affidavit be filed within three weeks and no more.
List thereafter.

The interim order is extended till the next date of listing.

Order Date :- 17.8.2011

AM/-

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C.,Rajesh Tripathi,Upender.Upadhaya,Vikas Budhwar

Hon'ble R.K. Agrawal,J.

Hon'ble Surendra Kumar,J.

Counter affidavit filed today be taken on record.

As prayed, rejoinder affidavit be filed within three weeks.

List thereafter.

Interim order is extended till the next date of listing.

Order Date :- 8.9.2011

Rmk.

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble R.K. Agrawal, J.

Hon'ble Surendra Kumar, J.

Counter affidavit and the rejoinder to counter affidavit filed by the respondent no.8, filed today be taken on record. As prayed rejoinder affidavit be filed within two weeks. List thereafter. The interim order is extended till the next date of listing.

Order Date :- 20.9.2011

mt

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble R.K. Agrawal, J.

Hon'ble Mrs. Jayashree Tiwari, J.

As prayed rejoinder affidavit be filed within three weeks and no more.

List on 17th November, 2011.

Interim order is extended till the next date of listing.

Order Date :- 10.10.2011

Monika

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble R.K. Agrawal, J.

Hon'ble Surendra Kumar, J.

Rejoinder affidavit filed today be taken on record. Passed over on the illness slip of Sri Vikas Budhwar. As the interim order is expiring today, it is extended till the next date of listing.

Order Date :- 17.11.2011

mt

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C.,Rajesh Tripathi,Upender.Upadhaya,Vikas Budhwar

Hon'ble R.K. Agrawal,J.

Hon'ble B. Amit Sthalekar,J.

Cases of Sri Nitin Sharma are reported to be adjourned till 25th November, 2011. Passed over list thereafter. As the interim order is expiring today, it is extended till the next date of listing.

Order Date :- 24.11.2011

mt

Court No. - 9

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Yogesh Chandra Gupta, J.

As prayed on behalf of Shri Nitin Sharma, learned counsel for the petitioner, list this case before the appropriate Bench in the next cause list.

Interim order, as contained in the Order dated 26.4.2011, will continue to remain operative till the next date of listing.

Order Date :- 1.12.2011

Ajeet

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble Vineet Saran, J.

Hon'ble Ashok Pal Singh, J.

List this case after two weeks. The interim order already granted by this Court shall continue till the next date of listing.

Order Date :- 09.12.2011.

Rks.

(Ashok Pal Singh, J) (Vineet Saran, J)

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C.,Rajesh Tripathi,Upender.Upadhaya,Vikas Budhwar

Hon'ble Vineet Saran,J.

Hon'ble Ashok Pal Singh,J.

List in the next cause list.

Interim to continue till the next date of listing.

Order Date :- 23.12.2011

Prabhat

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble Vineet Saran, J.

Hon'ble Ashok Pal Singh, J.

List this writ petition after two weeks. Interim order to continue till the next date of listing.

Order Date :- 6.1.2012

dps

(Ashok Pal Singh, J)

(Vineet Saran, J)

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C.,Rajesh Tripathi,Upender.Upadhaya,Vikas
Budhwar

Hon'ble Vineet Saran,J.

Hon'ble Ashok Pal Singh,J.

List after three weeks.

Interim order granted,if any, is extended till the next date of listing.

Order Date :- 20.1.2012

AKJ

(Ashok Pal Singh,J.) (Vineet Saran,J.)

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C.,Rajesh Tripathi,Upender.Upadhaya,Vikas Budhwar

Hon'ble Vineet Saran,J.

Hon'ble Ashok Pal Singh,J.

List after two weeks.

Interim order to continue till the next date of listing.

Order Date :- 13.2.2012

Abhishek Sri.

(Ashok Pal Singh,J.)

(Vineet Saran,J.)

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble Vineet Saran, J.

Hon'ble Ashok Pal Singh, J.

List in the next cause list.

Interim order to continue till the next date of listing.

Order Date :- 28.2.2012

Abhishek Sri.

(Ashok Pal Singh, J.) (Vineet Saran, J.)

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender. Upadhaya, Vikas Budhwar

Hon'ble Sunil Ambwani, J.

Hon'ble Pankaj Naqvi, J.

List on 27.3.2012. The interim order is extended till then.

Order Date :- 13.3.2012

Masarrat

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble Sunil Ambwani, J.

Hon'ble Pankaj Naqvi, J.

List on 18.4.2012.

The interim order is extended till then.

Order Date :- 27.3.2012

V.S.

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

Shri Vikas Budhwas, learned counsel appearing for the respondent has sent illness slip.

List on 2.5.2012. The interim order is extended till then.

Order Date :- 18.4.2012

RKP

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And
Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh
Tripathi, Upender. Upadhaya, Vikas Budhwar

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

List this case on 18.05.2012.

Stay is extended till then.

Order Date :- 2.5.2012

Kpy

Court No. - 21

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender Upadhaya, Vikas Budhwar

Hon'ble R.K. Agrawal, J.

Hon'ble Mushaffey Ahmad, J.

No time left. The interim order is expiring today, it is extended till the next date of listing. List in the next cause list.

Order Date :- 18.5.2012

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Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C., Rajesh Tripathi, Upender. Upadhaya, Vikas Budhwar

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

List this case on 6.7.2012.

Stay is extended till then.

Order Date :- 25.5.2012

Kpy

Court No. - 37

Case :- WRIT - C No. - 23988 of 2011

Petitioner :- Ashok Kumar Ajmera

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Nitin Sharma

Respondent Counsel :- C.S.C.,Rajesh Tripathi,Upender.Upadhaya,Vikas Budhwar

Hon'ble Sunil Ambwani,J.

Hon'ble Aditya Nath Mittal,J.

We have heard Shri Nitin Sharma, learned counsel appearing for the petitioner. Learned Standing Counsel appears for the State respondents.

By this writ petition, the petitioner has challenged the provisional assessment order, on the ground that the electricity connection has been temporarily, and thereafter permanently disconnected, after which the petitioner was not liable to pay any amount.

The petitioner was found to be unauthorisedly drawing the electricity, even after disconnection on which a theft case was registered and a final assessment order was passed on 24.10.2008.

The petitioner has a right to file an appeal under Section 127 of the Electricity Act, 2003, and raise all the grounds, which have been raised in this writ petition.

An affidavit has been filed on behalf of Hindustan Petroleum Corporation Ltd, stating that the petitioner's dealership agreement was terminated on 23.1.2007 after which the Hindustan Petroleum Corporation is running the petrol pump. The liability of payment of electricity dues beginning from issuance of the demand notice dated 25.11.2010, and citation dated 11.12.2010 is upon the petitioner. The retail outlet is now being run by the Hindustan Petroleum Corporation Ltd through diesel generator.

The writ petition is **dismissed** with liberty to the petitioner to file an appeal under Section 127 of the Electricity Act. In case the petitioner has deposited Rs. 1, 25,000/- as directed by the Court in the interim order dated 26.4.2011, the appellate authority will take into account the amount in entertaining the appeal. If the appeal is filed within one month, the same shall be decided on merits.

Order Date :- 6.7.2012

RKP